

26STCV01365 26STCV01365

County: los-angeles

Division: Civil Law and Motion

Department: 509

Hearing date: 2026-08-18

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C509%2C08%2F18%2F2026

Source SHA-256: 98f0f7c905b8badb63e7c0ee4fc426044983632916c9e65292c84e82a55e4547

Case Number: 26STCV01365 Hearing Date: August 18, 2026 Dept: 509

Victor Ortiz v. Hillcrest Construction Group LLC, et al.

(1) DEMURRER TO FIRST AMENDED COMPLAINT

(2) MOTION TO STRIKE

MOVING PARTY: Defendants Hillcrest Construction Group, LLC and Greg Smith

RESPONDING PARTY(S): Plaintiff Victor Ortiz

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is an employment action. Plaintiff Victor Ortiz (Plaintiff) was an employee of defendants Hillcrest Construction Group, LLC (Hillcrest) and Greg Smith (Smith, collectively, Defendants) from May 13, 2024, until November 15, 2024. Plaintiff alleges he was terminated because of a disability resulting from a workplace injury. Plaintiff alleges causes of action for: (1) disability discrimination in violation of Cal. Gov. Code § 12900 et seq. ("FEHA"); (2) retaliation in violation of FEHA under 12940(m)(2); (3) failure to provide reasonable accommodations in violation of FEHA; (4) failure to engage in good faith interactive process in violation of FEHA; (5) failure to prevent discrimination, harassment and/or retaliation in violation of FEHA; (6) wrongful termination in violation of public policy; (7) failure to pay all earned wages; (8) failure to provide itemized wage statements; (9) unfair competition, Cal. Bus. & Prof. Code, §17200 et seq.; (10) waiting time penalties in violation of Cal. Lab. Code § 203; and (11) breach of contract.

Defendants demur to causes of action 1-10 of the first amended complaint (FAC) and moves to strike punitive damages and various allegations within. Plaintiff opposed.

TENTATIVE RULING:

Defendants' Demurrer to the First Cause of Action (Disability Discrimination), Fourth Cause of Action (Failure to Engage in Good Faith Interactive Process), and Eighth Cause of Action (Failure to Provide Itemized Wage Statements) is SUSTAINED WITHOUT LEAVE TO AMEND.

Defendants' Demurrer to the Second, Third, Fifth, Sixth, and Ninth Causes of Action is SUSTAINED. Whether leave to amend is granted will depend on whether Plaintiff can make an adequate offer of proof at the hearing that a successful amendment is reasonably possible.

Defendants' Demurrer to the Seventh Cause of Action (Failure to Pay All Earned Wages) and Tenth Cause of Action (Waiting Time Penalties) is OVERRULED.

Defendants' Motion to Strike is GRANTED IN PART.

Defendants are ordered to give notice, unless waived.

DISCUSSION:

Demurrer to First Amended Complaint

I. Meet and Confer

The Declaration of attorney Peter G. Haber reflects that the meet and confer requirement was satisfied.

II. Legal Standard

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or by proper judicial notice. (Code Civ. Pro. § 430.30, subd. (a).) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (Ibid.) The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action. (Hahn, at p. 747.) "We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (Serrano v. Priest (1971) 5 Cal.App.3d 584, 591.) A "demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law." (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732 (internal citations omitted).)

III. Analysis

Defendants demur to the first ten causes of action of the FAC on grounds that each cause of action fails to state facts sufficient to constitute a cause of action or is uncertain.

As an initial note, the Court OVERRULES Defendants' demurrer for uncertainty on the grounds that (a) demurrers for uncertainty are disfavored and should only be sustained where the complaint is so uncertain that the demurring defendant cannot reasonably respond thereto (see, e.g., Khoury v. Maly's of Calif., Inc. (1993) 14 Cal.App.4th 612, 616); and (b) here, Plaintiff's complaint is not so uncertain that Defendants cannot reasonably respond thereto. Moreover, even if the pleading is somewhat vague, "ambiguities can be clarified under modern discovery procedures." (Ibid.)

Next, Defendants argue that "Plaintiff has made no effort to distinguish between the facts and damages arising from the purported FEHA Claims and the since deleted workers compensation cause of action in the original Complaint." (Mot. at p. 8:27-9:1.) However, Defendants cite no paragraph in the FAC that indicates such confusion.

The remaining arguments are addressed in turn.

A. First Cause of Action (FEHA Disability Discrimination)

California's Fair Employment and Housing Act (FEHA) prohibits employers from discriminating against employees on the basis of a disability. (Govt. Code, § 12940, subd. (a).) In order to establish a prima facie case of FEHA disability discrimination, the employee-plaintiff must prove: (1) he suffered from a disability; (2) with or without reasonable accommodation, he could perform the essential functions of the employment position she held or desired; and (3) that he was subjected to an adverse employment action because of his disability. (Jensen v. Wells Fargo Bank (2000) 85 Cal.App.4th 245, 254.)

Plaintiff's first cause of action for disability discrimination is insufficiently pled in several respects.

First, Plaintiff has failed to allege facts supporting the legal definition of a disability. Plaintiff has only alleged in general terms that an injury caused him to miss work. (FAC ¶¶30-36.) However, "[i]t is insufficient for [plaintiff] simply to allege a disability or to identify an injury or physical condition." (Gelfo v. Lockheed Martin Corp. (2006) 140 Cal.App.4th 34, 47.) "Plaintiff must demonstrate his injury or physical condition (in this instance, a low back injury, whose existence is undisputed) makes 'difficult' the achievement of work or some other major life activity." (Ibid.) Here, Plaintiff has alleged no facts that demonstrate anything beyond a workplace injury.

Second, "[o]n November 7, 2024, Dr. Corey L. Cook, D.C., medically cleared Plaintiff to return to work effective November 11, 2024 without any restrictions." (FAC ¶36.) It appears from Plaintiff's FAC that Plaintiff did not suffer from an injury that affected his employment upon return. Therefore, from Plaintiff's own allegations, he was not disabled.

Third, there are insufficient facts regarding the causal nexus between Plaintiff's disability and the adverse employment action. In short, there must be at least some case-specific facts that show that Plaintiff suffered an adverse employment action because of his disability, not merely that he suffered an adverse employment action and he had a disability. However, Plaintiff directly contradicts this element when alleging "Plaintiff believes his termination was retaliatory in nature, motivated by his workplace injury and subsequent medical leave." (FAC ¶41.) Plaintiff does not allege Defendants' actions were motivated by discrimination.

Accordingly, Defendants' demurrer to the First Cause of Action for Disability Discrimination is SUSTAINED.

Generally, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the Court that a pleading can be amended successfully. (Ibid.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) "Plaintiff must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading." (Lewis at p. 226.) However, here there appears to be no reasonable amendment as Plaintiff's FAC contradicts an assertion of disability discrimination. This action does not appear rooted in discrimination. Accordingly, leave to amend is DENIED.

B. Second Cause of Action (FEHA Retaliation)

FEHA provides that no employer may "discharge, expel, or otherwise discriminate against any person because the person has opposed any practices forbidden under this part [i.e., under FEHA] or because the person has filed a complaint, testified, or assisted in any proceeding under this part." (Gov. Code § 12940, subd. (h).) "Employees may establish a prima facie case of unlawful retaliation by showing that (1) they engaged in activities protected by the FEHA, (2) their employers subsequently took adverse employment action against them, and (3) there was a causal connection between the protected activity and the adverse employment action. [Citation.]" (Miller v. Department of Corrections (2005) 36 Ca1.4th 446, 472 (citation omitted).) "The cause link may be established by an inference derived from circumstantial evidence, such as the employer's knowledge

that the [employee] engaged in protected activities and proximity in time between the protected action and allegedly retaliatory employment decisions.” (Morgan v. Regents of Univ. of Cal. (2000) 88 Cal.App.4th 52, 69, internal citations omitted.)

For the purpose of FEHA retaliation, there are only two kinds of protected activity: (1) opposing practices forbidden under FEHA, and (2) taking part in a FEHA-related proceeding. (Gov’t Code, § 12940, subd. (h).) Plaintiff makes this request pursuant to subdivision (m)(2) which states that it is unlawful “[f]or an employer or other entity covered by this part to . . . retaliate or otherwise discriminate against a person for requesting accommodation under this subdivision, regardless of whether the request was granted.” (Gov’t Code, § 12940, subd. (m)(2), emphasis added.)

Here, Plaintiff alleges that “[o]n September 6, 2024, while working at the San Pedro job site, Plaintiff suffered a workplace injury when he fell down 4-5 stairs, injuring his back and causing long-term disability.” (FAC ¶30.) “On September 9, 2024, Dr. Nina Green, DC, placed Plaintiff on medical leave from September 9, 2024 to October 9, 2024 due to his workplace injury and resulting limitations.” (FAC ¶32.) “Throughout his medical leave, Plaintiff submitted all required medical documentation to GREG SMITH, Eric Rodriguez, and other management personnel, but received no acknowledgment or response regarding his medical status or accommodations.” (FAC ¶35.) “On November 11, 2024, Plaintiff reported to work as scheduled and as medically cleared. However, instead of being assigned to his regular San Pedro job site, he was directed to work at the Blake job site, representing a change in his work assignment.” (FAC ¶37.) “On November 15, 2024, just four days after his return to work, GREG SMITH personally terminated Plaintiff’s employment, citing ‘inadequate performance and slow project turnovers’ as the reason for termination.” (FAC ¶38.)

While Plaintiff is correct that requesting accommodation for a disability is considered a protected activity under FEHA, Plaintiff has not pled any facts demonstrating that he ever requested accommodation that would allow him to continue working despite his injury. (See Sanchez v. Swissport, Inc. (2013) 213 Cal.App.4th 1331, 1341 [broadly interpreting “protected activity” in FEHA as “exercis[ing one’s] rights under section 12940”].) Instead, Plaintiff simply states that “he submitted all required medical documentation.” (FAC ¶35.) This does not provide a factual allegation that Plaintiff requested accommodation for his disability. Further, simply exercising medical leave is not a protected activity under FEHA as protected activity is specifically defined as opposing FEHA violations or participating in FEHA proceedings. Medical leave is not codified in FEHA and therefore FEHA retaliation does not apply to retaliation for the exercise of medical leave.

Additionally, there is no allegation that supports any causal connection between any request for accommodation, to the extent any exists, and the termination. Plaintiff merely alleges “Plaintiff is informed and believes and based thereon alleges that Plaintiff’s requests for reasonable accommodation(s) were substantial motivating factors in Defendants’ decision to terminate Plaintiff’s employment.” (FAC ¶77.) These allegations do not satisfy Plaintiff’s pleading burden because allegations made on information and belief are insufficient if asserted without alleging the information that led Plaintiff to believe the allegations are true. (Gomes v. Countrywide Home Loans, Inc. (2011) 192 Cal.App.4th 1149, 1158-1159 [“A “[p]laintiff may allege on information and belief any matters that are not within his personal knowledge, if he has information leading him to believe that the allegations are true”].) There is no factual basis for this conclusion in the FAC.

Accordingly, Defendants’ demurrer to the Second Cause of Action for FEHA Retaliation is SUSTAINED.

Generally, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the Court that a pleading can be amended successfully. (Ibid.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) “Plaintiff must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading.” (Lewis at p. 226.) Whether leave to amend is granted will depend on whether Plaintiff can make an adequate offer of proof at the hearing that a successful amendment is reasonably possible.

C. Third Cause of Action (Failure to Provide Reasonable Accommodations)

Under Government Code, section 12940, it is an unlawful employment practice “to fail to make reasonable accommodation for the known physical or mental disability of an applicant or employee” unless the employer demonstrates doing so would

impose an undue hardship. "The essential elements of a failure to accommodate claim are: (1) the plaintiff has a disability covered by the FEHA; (2) the plaintiff is a qualified individual (i.e., he or she can perform the essential functions of the position); and (3) the employer failed to reasonably accommodate the plaintiff's disability." (Wilson v. County of Orange (2009) 169 Cal.App.4th 1185, 1192.)

However, as discussed above, Plaintiff has failed to allege a disability covered under FEHA. Therefore, this cause of action fails as a matter of law.

Accordingly, Defendants' demurrer to the Third Cause of Action for Failure to Provide Reasonable Accommodations is SUSTAINED.

Generally, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the Court that a pleading can be amended successfully. (Ibid.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) "Plaintiff must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading." (Lewis at p. 226.) Whether leave to amend is granted will depend on whether Plaintiff can make an adequate offer of proof at the hearing that a successful amendment is reasonably possible.

D. Fourth Causes of Action (Failure to Engage in Good Faith Interactive Process)

"FEHA requires an informal process with the employee to attempt to identify reasonable accommodations, not necessarily ritualized discussions." (Nealy v. City of Santa Monica (2015) 234 Cal.App.4th 359, 379.) Once initiated, the employer has a continuous obligation to engage in the interactive process in good faith. "Both employer and employee have the obligation 'to keep communications open' and neither has 'a right to obstruct the process.'" [Citation.] "Each party must participate in good faith, undertake reasonable efforts to communicate its concerns, and make available to the other information which is available, or more accessible, to one party. Liability hinges on the objective circumstances surrounding the parties' breakdown in communication, and responsibility for the breakdown lies with the party who fails to participate in good faith." [Citation.] (Swanson v. Morongo Unified School Dist. (2014) 232 Cal.App.4th 954, 971–972.)

In support of the fourth cause of action, Plaintiff alleges "Defendants refused to provide reasonable accommodations to Plaintiff and failed to engage in a good faith interactive process. During Plaintiff's medical leave from September 9, 2024 through November 9, 2024, Defendants failed to acknowledge or respond to Plaintiff's medical documentation and made no effort to discuss accommodations or his return to work." (FAC ¶107.) However, there are no factual allegations that demonstrate Plaintiff engaged in any discussion regarding accommodation when returning to work. Instead, Plaintiff alleges that he took medical leave after he informed Defendants that he was injured on the job. (See FAC ¶35, ["Throughout his medical leave, Plaintiff submitted all required medical documentation to GREG SMITH, Eric Rodriguez, and other management personnel."]) When he returned, he was immediately terminated. (FAC ¶¶35-38.) Consistent with this observation, Plaintiff alleges "Plaintiff was willing to participate in an interactive process to determine whether reasonable accommodation could be made so that Plaintiff would be able to perform the essential job requirements." (FAC ¶108, emphasis added.) It is, therefore, apparent from the FAC that Plaintiff never initiated such a process.

Accordingly, Defendants' demurrer to the Fourth Cause of Action for Failure to Engage in Good Faith Interactive Process is SUSTAINED.

Generally, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the Court that a pleading can be amended successfully. (Ibid.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) "Plaintiff must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading." (Lewis at p. 226.) It appears that there is no dispute that Plaintiff did not initiate any interactive process but rather, was simply willing to as discussed above. Therefore, there are no additional facts that can be pled to overcome this deficiency. Accordingly, leave to amend is DENIED.

E. Fifth and Sixth Causes of Action (Failure to Prevent Discrimination, Harassment and/or Retaliation in Violation of FEHA and Wrongful Termination in Violation of Public Policy)

The fifth cause of action for failure to prevent discrimination, harassment and/or retaliation in violation of FEHA is derivative of Plaintiff's underlying discrimination and retaliation claims. As such, this claim rises and falls with the underlying causes of action. (*Dickson v. Burke Williams, Inc.* (2015) 234 Cal.App.4th 1307, 1315-1316 [allegations the employer failed to prevent conduct rises and falls with the underlying claim].) Therefore, this cause of action is likewise deficient as a matter of law.

Similarly, the sixth cause of action for wrongful termination in violation of public policy must be tethered to a violation of constitutional or statutory provisions. (*Grant-Burton v. Covenant Care, Inc.* (2002) 99 Cal.App.4th 1361, 1372.) However, Plaintiff has failed to sufficiently allege such violation. Plaintiff alleges "Plaintiff's termination violates fundamental principles of public policy in that there is a substantial and fundamental policy against terminating employees for unlawful purposes, including on account of disability discrimination and retaliation." (FAC ¶126.) Indeed, there is no violation of constitutional or statutory provision alleged. Even if the Court was to consider prior statutory violations as the basis for this cause of action, such as FEHA violations, those allegations have already been deemed insufficient as a matter of law.

Accordingly, Defendants' demurrer to the Fifth and Sixth Causes of Action for Failure to Prevent Discrimination, Harassment and/or Retaliation in Violation of FEHA and Wrongful Termination in Violation of Public Policy is SUSTAINED.

Generally, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the Court that a pleading can be amended successfully. (*Ibid.*; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.) "Plaintiff must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading." (*Lewis* at p. 226.) Whether leave to amend is granted will depend on whether Plaintiff can make an adequate offer of proof at the hearing that a successful amendment is reasonably possible.

F. Seventh Cause of Action (Failure to Pay Wages)

It is well-settled policy in California that all of an employee's earned wages must be fully and promptly paid. (*Smith v. Superior Court* (2006) 39 Cal.4th 77, 82.) Failure to promptly pay wages results in a waiting time penalty whereby the wages continue to accrue up to a maximum of 30 days. (Lab. Code § 203.) "'Wages' includes all amounts for labor performed by employees of every description, whether the amount is fixed or ascertained by the standard of time, task, piece, commission basis, or other method of calculation." (Lab. Code, § 200.) Bonuses are treated as wages when the bonus is promised as part of compensation and the employee fulfills any agreed-to conditions for the bonus. (*Neisendorf v. Levi Strauss & Co.* (2006) 143 Cal.App.4th 509, 522.) All earned wages are due and payable immediately upon an employee's termination. (Lab. Code, § 201, subd. (a).)

Here, Plaintiff alleges that "Plaintiff's final paycheck was incorrectly calculated, reflecting only 32 hours of work instead of the 40 hours he actually worked, resulting in unpaid wages of approximately \$440." (FAC ¶139.) This is sufficient to allege a failure to pay wages.

In opposition, Defendants argues that "[b]ecause Plaintiff's own allegations in the FAC establish he was an administrative employee, and thus not entitled to overtime pay under California Law, Plaintiff has failed to allege facts sufficient to state a cause of action for Failure to Pay All Earned Wages." (Mot. at p. 17:19-21.) However, this cause of action does not discuss overtime pay. To any extent this \$440 is overtime pay is a question of fact unresolvable on demurrer.

Accordingly, Defendants' demurrer to the seventh cause of action is OVERRULED.

G. Eighth Cause of Action (Failure to Provide Itemized Wage Statements, Cal. Lab. Code § 226)

Plaintiff brings this cause of action for failure to provide itemized wage statements pursuant to Labor Code, section 226(a). Labor Code, section 226(a) states:

An employer, semimonthly or at the time of each payment of wages, shall furnish to their employee, either as a detachable part of the check, draft, or voucher paying the employee's wages, or separately if wages are paid by personal check or cash, an accurate itemized statement in writing showing (1) gross wages earned, (2) total hours worked by the employee, except as provided in subdivision (j), (3) the number of piece-rate units earned and any applicable piece rate if the employee is paid on a piece-rate basis, (4) all deductions, provided that all deductions made on written orders of the employee may be aggregated and shown as one item, (5) net wages earned, (6) the inclusive dates of the period for which the employee is paid, (7) the name of the employee and only the last four digits of their social security number or an employee identification number other than a social security number, (8) the name and address of the legal entity that is the employer and, if the employer is a farm labor contractor, as defined in subdivision (b) of Section 1682, the name and address of the legal entity that secured the services of the employer, and (9) all applicable hourly rates in effect during the pay period and the corresponding number of hours worked at each hourly rate by the employee and, beginning July 1, 2013, if the employer is a temporary services employer as defined in Section 201.3, the rate of pay and the total hours worked for each temporary services assignment. The deductions made from payment of wages shall be recorded in ink or other indelible form, properly dated, showing the month, day, and year, and a copy of the statement and the record of the deductions shall be kept on file by the employer for at least three years at the place of employment or at a central location within the State of California. For purposes of this subdivision, 'copy' includes a duplicate of the itemized statement provided to an employee or a computer-generated record that accurately shows all of the information required by this subdivision.

(Lab. Code, § 226, subd. (a).)

Here, Plaintiff's cause of action is deficient. Plaintiff alleges "Defendants employed Plaintiff, but failed to provide Plaintiff with itemized wage statements that complied with section 226(a) of the Labor Code." (FAC ¶149.) This is merely a conclusory statement with zero factual allegations to support the conclusion. Therefore, this cause of action is deficient as a matter of law. (See *Serrano v. Priest*, supra, 5 Cal.App.3d at p. 591, [A "demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law."]) Indeed, from the nature of the allegation, it would appear Plaintiff should know exactly what was omitted from their wage statements.

The Court notes that this cause of action appears, instead, simply duplicative of the prior cause of action for failure to pay wages. Indeed, Plaintiff alleges "[w]age statements issued to Plaintiff did not accurately reflect the hours worked, as evidenced by his final paycheck reflecting only 32 hours instead of the 40 hours actually worked." (FAC ¶150) "Wage statements issued to Plaintiff failed to provide accurate information regarding overtime compensation owed for hours worked in excess of 40 hours per week." (FAC ¶151; see also Opp. at p. 14: 9-11, ["Plaintiff alleges the final paycheck reflected only 32 hours instead of 40 hours. Plaintiff alleges wage statements failed to accurately reflect hours worked and overtime compensation owed."]) These allegations do not support a cause of action for a violation of Labor Code, section 226, but rather a failure to pay wages owed as alleged in the seventh cause of action.

Accordingly, Defendants' demurrer to the eighth cause of action is SUSTAINED.

Generally, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the Court that a pleading can be amended successfully. (*Ibid.*; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.) "Plaintiff must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading." (*Lewis* at p. 226.) However, here there appears to be no reasonable amendment that would justify leave to amend as this cause of action appears duplicative of the seventh cause of action instead of a standalone violation. Accordingly, leave to amend is DENIED.

H. Ninth Cause of Action (Unfair Competition, Cal. Bus. & Prof. Code § 17200 et seq.)

Business and Professions Code, section 17200 prohibits “any unlawful, unfair or fraudulent business act or practice.” (Bus. & Prof. Code § 17200; see *Clark v. Superior Court* (2010) 50 Cal.4th 605, 610.) A violation of other laws is deemed independently actionable under the UCL. (See *Law Offices of Mathew Higbee v. Expungement Assistance Services* (2013) 214 Cal.App.4th 544, 554.) “Virtually any law, federal, state or local, can serve as a predicate for a section 17200 action.” (Ibid. (quoting *Troyk v. Farmers Group, Inc.* (2009) 171 Cal.App.4th 1305, 1335).) To establish a fraudulent practice under the UCL, the plaintiff must show that members of the public are likely to be deceived. (See *West v. JP Morgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 780, 806.) “A business practice is unfair within the meaning of the UCL if it violates established public policy or if it is immoral, unethical, oppressive or unscrupulous and causes injury to consumers which outweighs its benefits.” (*McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1473.) Further, statutory claims must be pled with particularity. (*Carter v. Prime Healthcare Paradise Valley LLC* (2011) 198 Cal.App.4th 396, 410.) A cause of action for unfair competition “is not an all-purpose substitute for a tort or contract action.” (*Cortez v. Purolator Air Filtration Products Co.* (2000) 23 Cal.4th 163, 173.)

Here, Plaintiff alleges, “As alleged above, Defendants have failed to pay Plaintiff all earned wages, failed to provide accurate itemized wage statements, and failed to pay overtime compensation in violation of the California Labor Code, as alleged hereinabove.” (FAC ¶156.)

First, these actions are not considered unfair or fraud under the UCL. When a UCL claim is brought against a competitor, the “unfair” prong of the statute “means conduct that threatens an incipient violation of an antitrust law, or violates the policy or spirit of one of those laws because its effects are comparable to or the same as a violation of the law, or otherwise significantly threatens or harms competition.” (*Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.* (1999) 20 Cal.4th 163, 187.) “[A]ny finding of unfairness to competitors under section 17200 [must] be tethered to some legislatively declared policy or proof of some actual or threatened impact on competition.” (Id. at p. 186-187.) To demonstrate fraud to establish a fraudulent practice under the UCL, the plaintiff must show that members of the public are likely to be deceived. (See *West v. JPMorgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 780, 806.) Plaintiff has met neither of these definitions.

Instead, Plaintiff’s cause of action rests entirely on the “unlawful” portion of the UCL. If a business practice is alleged to be “unlawful, then the complaint “must state facts supporting the statutory elements of the alleged violation.” (See *G.H.I.I. v. MTS* (1983) 147 Cal.App.3d 256 [allegations of secret rebates, locality discrimination, sale below cost, and loss leaders; complaint was sufficient.]; *Khoury v. Maly’s of Calif.* (1993) 14 Cal.App.4th 612, 619 [citing 5 Witkin, Cal. Procedure (5th ed. 2008), Pleading, § 779, p. 196 stating “demurrer was properly sustained; complaint identified no particular statutory section that was violated and failed to describe with reasonable particularity facts supporting violation . . .”].)

Here, Plaintiff fails to identify the specific statute and fails to allege facts supporting the elements of the statutory violation. Instead, Plaintiff simply broadly refers to the entire complaint without factual allegations or identifying the statute on which this request is made. This cause of action appears merely as an “all-purpose substitute for a tort or contract action” which is improper. (*Cortez v. Purolator Air Filtration Products Co.*, supra, 23 Cal.4th at p. 173.) Therefore, Plaintiff’s cause of action is deficient.

Accordingly, Defendants’ demurrer to the Ninth Cause of Action for Unfair Business Practices is SUSTAINED.

Generally, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the Court that a pleading can be amended successfully. (Ibid.; *Lewis v. YouTube, LLC* (2015) 244 Cal.App.4th 118, 226.) “Plaintiff must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading.” (Lewis at p. 226.) Whether leave to amend is granted will depend on whether Plaintiff can make an adequate offer of proof at the hearing that a successful amendment is reasonably possible. [FN 1]

I. Tenth Cause of Action (Waiting Time Penalties in Violation of Cal. Lab. Code § 203)

Labor Code, section 203(a) imposes penalties on an employer who “willfully fails to pay, without abatement or reduction ... any wages of an employee who is discharged or who quits.” As set forth above, Plaintiff has stated a claim for withholding

payment that would entitle him to waiting time penalties under subdivision 203. But to state an additional claim for penalties, Plaintiff must also plead that Hillcrest willfully committed these violations.

“[T]o be at fault within the meaning of the [section 203], the employer’s refusal to pay need not be based on a deliberate evil purpose to defraud workmen of wages which the employer knows to be due. As used in section 203, ‘willful’ merely means that the employer intentionally failed or refused to perform an act which was required to be done.” (Barnhill v. Robert Saunders & Co. (1981) 125 Cal.App.3d 1, 7.) “In civil cases, the word ‘willful,’ as ordinarily used in courts of law, does not necessarily imply anything blamable, or any malice or wrong toward the other party, or perverseness or moral delinquency, but merely that the thing done or omitted to be done was done or omitted intentionally. It amounts to nothing more than this: That the person knows what he is doing, intends to do what he is doing, and is a free agent.” (Davis v. Morris (1940) 37 Cal.App.2d 269, 274, italics added.)

While case law sets an extreme low standard for “willful” failure under section 203, regulations provide a safe harbor for employers who have a bona fide belief that they have followed the law: “‘a good faith dispute [about whether] wages are due will preclude imposition of waiting time penalties under [Labor Code] Section 203.’ (Cal. Code Regs., tit. 8, § 13520.)” (Kao v. Holiday (2017) 12 Cal.App.5th 947, 963.) Plaintiff need only plead the minimum threshold of “willful” behavior on the part of defendant – that is, that defendant acted freely and knowingly. Defendants need not have known that their action was illegal or intended to wrongfully deprive plaintiff of wages.

Here, Plaintiff sufficiently alleges as much. Plaintiff alleges “Defendant HILLCREST CONSTRUCTION GROUP LLC’S failure to pay all wages owed at the time of discharge was willful within the meaning of Labor Code section 203, in that Defendant HILLCREST CONSTRUCTION GROUP LLC knew or should have known that Plaintiff worked 40 hours during his final pay period and intentionally or negligently failed to properly calculate and pay all wages owed.” (FAC ¶168.) This is sufficient to demonstrate the ultimate fact that Hillcrest willfully withheld the \$400 alleged in the seventh cause of action. (See FAC ¶139.)

In their demurrer, Hillcrest argues that “as a practical matter, it is impossible to infer from the FAC that Hillcrest willfully failed to pay Plaintiff his final wages timely because Hillcrest was not under a legal obligation to do so, given that Plaintiff is an exempt employee and is not entitled to receive compensation for overtime.” (Mot. at p. 18:28-19:3.) As discussed above, the FAC does not classify this \$400 underpayment as overtime wage. In the end, a determination of whether this amount was owed is better left to other motion types as a demurrer cannot consider evidence or other extrinsic matters not pled in the FAC.

Accordingly, Defendants’ Demurrer to the Tenth Cause of Action for Waiting Time Penalties in Violation of Cal. Lab. Code § 203 is OVERRULED.

Motion to Strike

I. Legal Standard

A motion to strike lies either (1) to strike any irrelevant, false or improper matter inserted in any pleading; or (2) to strike any pleading or part thereof not drawn or filed in conformity with the laws of this state, a court rule or order of court. (Code Civ. Pro § 436.)

II. Analysis

Here, Defendants seek to strike paragraphs 52, 53, 82, 97, 113, 123, and 134 from the FAC as well as the request for punitive damages within the prayer for relief.

First, as to paragraphs 82, 97, 113, 123, and 134, the concurrent demurrer has been sustained to the respective causes of action containing such paragraphs. Accordingly, Defendants' motion to strike paragraphs 82, 97, 113, 123, and 134 from the FAC is MOOT.

Paragraphs 52 and 53 state, in relevant part, "Defendant GREG SMITH, [] acted as a managing agent, officer, or director in committing the discriminatory and retaliatory acts alleged herein. His conduct was intentional, malicious, and done in conscious disregard of Plaintiff's rights. [] SMITH's discriminatory and retaliatory conduct was not merely negligent, but was done with the knowledge that his actions violated Plaintiff's legal rights and with a willful and conscious disregard for those rights." (FAC ¶¶52-53.) However, all causes of action against Smith and all causes of action for discrimination or retaliation have been sustained on the concurrent demurrer. Therefore, should leave be denied, all allegations of discrimination and retaliation are irrelevant. Accordingly, Defendant's Motion to Strike Paragraphs 52 and 53 from the complaint is GRANTED.

Finally, this leaves the request for punitive damages. However, punitive damages are not recoverable in breach of contract cases (eleventh cause of action) and are thus improper. (See *Brewer v. Premier Golf Properties* (2008) 168 Cal.App.4th 1243, 1252; *Cates Construction, Inc. v. Talbot Partners* (1999) 21 Cal.4th 28, 61.) Therefore, punitive damages must be maintained purely on Plaintiff's allegations in the seventh cause of action for failure to pay wages and the tenth for waiting time penalties.

However, appellate authority indicates that causes of action based solely on alleged violations of the Labor Code's wage-and-hour provisions do not give rise to the possibility of punitive damages. (*Brewer v. Premier Golf Properties, LP* (2008) 168 Cal.App.4th 1243, 1252 [applying the "new right-exclusive remedy" doctrine to conclude that punitive damages "are not recoverable when liability is premised solely on the employer's violation of the Labor Code statutes that regulate meal and rest breaks, pay stubs, and minimum wage laws"].) Here, the failure of Hillcrest to provide final wage payment has nothing to do with the alleged malice and punitive damage arising from the wrongful termination claims. Thus, this appears that punitive damages are not available on these wage-and-hour claims. Plaintiff did not address whether punitive damages can be sustained for a violation of the Labor Code, alone. (See *Opp.*, generally.) Instead, it appears that the Labor Code, as a matter of law, does not authorize punitive damages.

¿¿

Accordingly, Defendant's Motion to Strike punitive damages is GRANTED.¿Whether leave to amend is granted will depend on whether Plaintiff can make an adequate offer of proof at the hearing that a successful amendment is reasonably possible.

IT IS SO ORDERED.

Dated: August 18, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1 - Of course, perhaps Plaintiff (and his attorney) should be careful of what they ask. This Court has the authority to bifurcate this UCL cause of action (including the request for injunctive relief) and hear this matter first. (See, e.g., *Prakashpalan v. Engstrom, Lipscomb and Lack* (2014) 223 Cal.App.4th 1105, 1133; [The remedies for UCL claims brought by private individuals are limited to injunctive relief and restitution.]) The adjudication of this cause of action and/or request for injunctive relief could arguably moot many, if not all, of the other remaining causes of action in this case.

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a

tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.